

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Joshua Richardson	Team: Squad #07	CCRB Case #: 201806268	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 07/13/2018 9:30 AM	Location of Incident: At § 87(2)(b)	18 Mo. SOL 1/13/2020	Precinct: 104
Date/Time CV Reported Thu, 08/02/2018 9:03 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 08/02/2018 9:03 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Angelo Reyes	19629	963227	104 PCT
2. Officers			104 PCT
3. POF Nakisha Bogle	25590	962263	104 PCT
4. POM Randy Paulsaint	17773	951022	104 PCT
5. POM Milton Russi	31891	933306	104 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DTS Edwin Diaz	797	944504	C R C
2. POM Salvatore Calvagna	09080	964957	104 PCT
3. POM Anthony Lamicella	26851	947152	104 PCT
4. SGT Martha Lequerica	04572	906634	104 PCT
5. POM Yeahya Shahid	25436	963270	104 PCT
6. SGT Danny Lei	3842	936939	104 PCT
7. POF Genesis Rosario	09877	964742	104 PCT
8. SGT Edward Reiman	04661	925975	104 PCT
9. POM David Babayev	22384	929425	104 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Angelo Reyes	Force: Police Officer Angelo Reyes pointed his gun at § 87(2)(b)	A . Exonerated
B . POM Milton Russi	Force: Police Officer Milton Russi pointed his gun at § 87(2)(b)	B . Exonerated
C . POM Randy Paulsaint	Force: Police Officer Randy Paulsaint pointed his gun at § 87(2)(b)	C . Exonerated
D . POF Nakisha Bogle	Force: Police Officer Nakisha Bogle pointed her gun at § 87(2)(b)	D . Exonerated

Officer(s)	Allegation	Investigator Recommendation
E . Officers	Force: Officers used physical force against § 87(2)(b)	E . Unfounded
F . Officers	Abuse: Officers failed to secure medical treatment for § 87(2)(b)	F . Unfounded

Case Summary

On August 2, 2018, § 87(2)(b) filed this complaint with the CCRB via phone on behalf of her brother-in-law, the deceased § 87(2)(b). § 87(2)(b) did not witness this incident.

On July 13, 2018, at approximately 9:30am, while standing in the backyard of § 87(2)(b) in Queens, and its immediate vicinity, PO Angelo Reyes, PO Milton Russi, PO Nakisha Bogle, PO Randy PaulSaint, all of the 104th Precinct, pointed their guns at § 87(2)(b) **(Allegations A, B, C, and D; Force, Exonerated)**. § 87(2)(b) was placed under arrest, escorted to a police vehicle and transported to the 104th Precinct stationhouse. While inside the stationhouse, § 87(2)(b) became unresponsive and Det. Diaz administered CPR with the assistance of an automated external defibrillator (subsequently referred to as AED) machine. FDNY EMS arrived on scene shortly thereafter, and they transported § 87(2)(b) to § 87(2)(b) where he was pronounced dead on arrival. On § 87(2)(b), § 87(2)(b) observed § 87(2)(b)'s body at § 87(2)(b), and observed bruises, scrapes, and cuts to his body which she believed he sustained through the incident with the police officers **(Allegation E; Force, Unfounded)**. § 87(2)(b) **(Allegation F; Abuse of Authority, Unfounded)**.

There was video footage obtained in regards to this incident. Cell phone footage recorded by and obtained from § 87(2)(b) who was a witness to § 87(2)(b)'s arrest.

Findings and Recommendations

Allegation A: Force: Police Officer Angelo Reyes pointed his gun at § 87(2)(b)

Allegation B: Force: Police Officer Milton Russi pointed his gun at § 87(2)(b)

Allegation C: Force: Police Officer Randy Paulsaint pointed his gun at § 87(2)(b)

Allegation D: Force: Police Officer Nakisha Bogle pointed her gun at § 87(2)(b)

Allegation E: Force: Officers used physical force against § 87(2)(b)

Allegation F: Abuse of Authority: Officers failed to secure medical treatment for § 87(2)(b)

As stated above § 87(2)(b) did not witness § 87(2)(b)'s interaction with the officers but filed this complaint because of the bruises and scrapes she observed to his body while in the funeral home and also because of what she felt was Det. Jason Balsan's, of Force Investigations Division, reluctance to share any pertinent information in regards to this incident.

On July 14, 2018, at an unknown time during the afternoon, § 87(2)(b) called § 87(2)(b)'s wife, who resides in Georgia. While speaking to her over the phone, the Georgia Police knocked on her door and explained to § 87(2)(b) that she needed to identify § 87(2)(b) by looking at a picture. § 87(2)(b) complied, looked at the picture, and identified that it was § 87(2)(b). While still on the phone with § 87(2)(b), § 87(2)(b) engaged in another phone conversation with Det. Balsan, who stated he was assigned this case because § 87(2)(b) had died in police custody. Det. Balsan informed her, that on July 13, 2018, § 87(2)(b) was wandering around the streets of Queens disoriented and that he ended up in an individual's backyard. The

police were called on § 87(2)(b) for trespassing, and when the officers responded and approached him, § 87(2)(b) was confused and unable to answer any of their questions. While en route to the 104th Precinct stationhouse, § 87(2)(b) complained of difficulty breathing and the officers requested that an ambulance meet them at the stationhouse. Once they arrived at the stationhouse, § 87(2)(b) collapsed. CPR was administered twice and then he was taken to the § 87(2)(b) where he was ultimately pronounced dead § 87(2)(b). § 87(2)(b) didn't have any I.D. on him, so the officers were unable to identify him. Det. Balsan stated there were no injuries or trauma to § 87(2)(b)'s body. Det. Balsan couldn't provide them with certain information since the investigation was still pending. On July 17, 2018, by way of a three way phone call, § 87(2)(b) and § 87(2)(b) called Det. Balsan because they wanted more information in regards to what happened to § 87(2)(b). However, certain details in Det. Balsan's story had changed from the first time they spoke and a lot of information Det. Balsan refused to tell them because the investigation was still ongoing. On § 87(2)(b), § 87(2)(b) went to § 87(2)(b), to view § 87(2)(b)'s body before the wake. § 87(2)(b) observed several bruises and scrapes all over § 87(2)(b)'s body including a bruise to § 87(2)(b)'s left side forehead area near his eye, bruising to his left torso area, and scrapes on his knees. (Board Review 01)

On August 10, 2018, § 87(2)(b) emailed the undersigned photographs that were taken of § 87(2)(b) on § 87(2)(b), at § 87(2)(b). These photographs depict the following: a bruise to § 87(2)(b)'s left side forehead area near his eye, bruising to his left torso area, a bruise on the left side of his back, scrapes/cuts and bruises to his knees and shins, gashes/cuts to the palm of his hands, and red markings to his chest area. (Board Review 22)

§ 87(2)(b) testified that on July 13, 2018, at 9:30am, while in the backyard of her residence, which also operates as a daycare business, located at § 87(2)(b) in Queens, § 87(2)(b) noticed a man, identified via the investigation as § 87(2)(b), jumping over several properties from the direction of § 87(2)(b). § 87(2)(b) described § 87(2)(b) as a black male, approximately 48 years old who appeared to be disoriented in that his eyes were opened wide looking in many different directions, while breathing in an agitated manner. § 87(2)(b) climbed into § 87(2)(b)'s yard and she and some of the children present entered the house. § 87(2)(b) called 911 and told the operator that a "crazy man" entered her yard, and that he was attempting to enter the next property but was unable to. § 87(2)(b) was unable to jump over a concrete wall in § 87(2)(b)'s yard; repeatedly forcefully falling backwards into her backyard. At one point he struck himself against a table with an umbrella attached to it, but was unsure about what part of his body made contact with the table. § 87(2)(b) observed a few drops of blood coming from § 87(2)(b) and a few drops on the ground of her backyard where § 87(2)(b) fell. However, she was unable to see specifically where the blood coming from § 87(2)(b) originated from. Approximately three minutes later, officers arrived on scene through the backyard and also at her front door. Approximately seven officers entered her backyard, and told § 87(2)(b) to "Stop", while three of these officers pointed their guns at him. § 87(2)(b) knelt and extended both arms outward with open palms and then placed both hands behind his neck. The officers then placed him in handcuffs without issue and without using any force. § 87(2)(b) was then carried out to the street through the apartment by his ankles and arms. § 87(2)(b) did not know why the officers did this. § 87(2)(b) never heard § 87(2)(b) speak, but his eyes continued to be opened wide and his breathing remained agitated. She did not see him being placed in the police vehicle because she closed the door when § 87(2)(b) was escorted outside.

Approximately one minute later, four officers knocked on the door and asked her if she had seen the man with a gun or knife and she replied that she had not. After obtaining § 87(2)(b)'s permission, the officers looked in her backyard for a few minutes and then informed § 87(2)(b) that nothing was found. (Board Review 02)



201806268_20180828_1540_DM.mp4

(Board Review 06)

This video was taken by § 87(2)(b) on her cell phone while she was inside her residence on the second floor. The video depicts § 87(2)(b) in a white t-shirt, blue basketball shorts with one house slipper on his left foot and barefoot on the right foot. In this video, § 87(2)(b) unsuccessfully attempts to climb over the wall in § 87(2)(b)'s backyard.



subclip1.mp4

(Board Review 07)

This video was taken by § 87(2)(b) on her cell phone while she was inside her residence on the second floor. The video depicts PO Reyes along with another officer carrying § 87(2)(b) out of the front door of the location by his legs and arms. Sgt. Lei walks out of the door behind them.

On October 4, 2018, the undersigned received the Communications CDs for the following Events: § 87(2)(b), § 87(2)(b) and § 87(2)(b) which provided the recordings of the three 911 phone calls placed in regards to his incident, including § 87(2)(b)'s (Event § 87(2)(b)). The first call was placed by a female resident of § 87(2)(b) at 9:26am, which is the residence directly behind § 87(2)(b). This female caller reported that there was a black male with a white shirt with blue shorts, bald, 5'5", medium build in her backyard with a gun who doesn't want to leave. She confirmed she saw the firearm and that he was jumping into the backyard of a daycare. The second caller, at 9:29am, was a female resident of § 87(2)(b) and this caller reported that a male with a white shirt and blue shorts was in her backyard and was climbing next door into the daycare's backyard. The third caller, § 87(2)(b) at 9:32am, reported that a black male in a white shirt and blue shirts was attempting in her backyard and was attempting to climb the steps to get out. (Board Review 03,04,05)

On July 13, 2018, § 87(2)(b) was transported to § 87(2)(b), in Queens.

§ 87(2)(a) PHL § 18(6)

PO Reyes testified that on July 13, 2018, at approximately 9:27am, he received a radio run of a male, identified via the investigation as § 87(2)(b) being in possession of a gun in the

backyard of § 87(2)(b), in Queens. The type of firearm was not described in the radio run. He and his partner, PO Russi, were the first officers on scene arriving approximately within five minutes. PO Reyes spoke to the female resident of § 87(2)(b) who confirmed she called 911 because she observed § 87(2)(b) in her backyard climbing over her fence into the backyard of the house directly behind hers, which was a daycare. She believed § 87(2)(b) had a gun because she saw a shiny object his waistband. The officers gained permission to enter her house and they drew their guns while walking to the backyard. When they arrived at the backyard, the female caller pointed towards § 87(2)(b) while saying, "That's him." PO Reyes observed § 87(2)(b) standing on a table in the backyard of § 87(2)(b). PO Reyes, with his gun pointed at § 87(2)(b) told § 87(2)(b) to get off the table, to keep his hands up, to get on the ground, and the put his hands behind his back. PO Reyes was in fear for his and other civilians' safety due to the nature of the call so that is why he had his gun pointed. § 87(2)(b) complied with every command without saying a word. PO Reyes holstered his gun because he observed § 87(2)(b)'s hands to be free and then jumped over the gate into § 87(2)(b) while PO Russi stayed in the backyard of § 87(2)(b). At this time, § 87(2)(b) was standing on the ground and making his way to lay on the ground. § 87(2)(b) was wearing a white t-shirt, shorts, and was barefoot. PO Reyes approached and handcuffed § 87(2)(b) without incident or struggle. As he was handcuffing him, PO Reyes observed blood to one of his palms and also blood on the table that § 87(2)(b) was previously standing on. PO Reyes did not know how § 87(2)(b) obtained the injury and that was the only injury he observed. § 87(2)(b)'s physical condition seemed to be fine: he didn't observe any bruises to his body, scrapes to his legs, his breathing seemed normal, his eyes appeared normal, and he didn't seem disoriented.

PO Reyes picked § 87(2)(b) up from the ground and asked him if he had a gun on him and he stated without struggle, "No, I don't have a gun." Sgt. Lei and PO Shahid then arrived in the backyard and were standing in front of PO Reyes. PO Reyes frisked and searched § 87(2)(b) and the only property § 87(2)(b) had on him was an IPOD in his pants pocket and a piece of jewelry. PO Reyes stated § 87(2)(b) was not asked who he was or what he was doing there at this point because the location was a daycare and young kids were present so they just wanted § 87(2)(b) out of the location for children safety. § 87(2)(b) was able to walk on his own two feet so he, Sgt. Lei and PO Shahid walked with him through the first floor of § 87(2)(b). However, at some point while in the house, § 87(2)(b) began to drag his legs along the floor, dropped his weight and went limp, so while holding one arm and his legs and while PO Shahid grabbed the other side of § 87(2)(b)'s arm PO Reyes and PO Shahid carried § 87(2)(b) out of the front of the location to Det. Diaz's marked police vehicle. PO Reyes stated he was the only officer to grab and lift § 87(2)(b)'s legs and the only reason he did so was because § 87(2)(b) dropped his weight and dragged his legs and they had to get him out of the location due to child safety. § 87(2)(b) was placed in the vehicle without any struggle and then transported to the 104th Precinct stationhouse. § 87(2)(b) was compliant, his breathing was normal and the only thing he stated was no he didn't have a gun. PO Reyes stayed on scene and spoke to the female caller of § 87(2)(b) again who reiterated what she told them earlier. PO Reyes then drove back to the 104th Precinct stationhouse and when he arrived, he observed an ambulance in front of the location. PO Reyes had no idea what was going on at this point. Upon walking inside, he observed several EMT's administering chest compressions to § 87(2)(b) who was lying face up on the floor near the front desk. The EMT's transported § 87(2)(b) to § 87(2)(b). PO Reyes was instructed to go to the hospital so he complied arriving at 10:20am. At

approximately 11:50am, § 87(2)(b) was pronounced dead on arrival. Later that day, Det. Diaz informed PO Reyes that during the transport § 87(2)(b) stated he wasn't feeling too well, so an ambulance was requested to meet them at the 104th Precinct stationhouse and when they arrived at the stationhouse § 87(2)(b) collapsed at the front desk. (Board Review 08)

Sgt. Lei's testimony was consistent with that of PO Reyes's with the following exceptions: Upon arrival on scene, Sgt. Lei walked into the parking lot adjacent to the 6-foot wall of the backyard of § 87(2)(b) § 87(2)(b) who was inside of this backyard, had his hands on top of the wall and was attempting to climb over it into the parking lot. Sgt. Lei observed PO Paulsaint, who was standing in the parking lot, and PO Russi, who was standing in the backyard of § 87(2)(b) § 87(2)(b), with their guns pointed at § 87(2)(b) ordering him to show them his hands but § 87(2)(b) did not comply. Sgt. Lei approached with nothing in his hands and commanded § 87(2)(b) § 87(2)(b) to stay where he was, but § 87(2)(b) let go of the wall and dropped back into the backyard. Sgt. Lei had lost sight of § 87(2)(b) and did not hear any noise that would have indicated that § 87(2)(b) landed on the ground. Sgt. Lei immediately climbed the same wall and observed § 87(2)(b) § 87(2)(b)'s back towards him and PO Reyes in front of § 87(2)(b) standing in the backyard to § 87(2)(b) § 87(2)(b). Sgt. Lei ordered PO Paulsaint and PO Russi to holster their guns because he observed § 87(2)(b) had nothing in his hands. After § 87(2)(b) complied with PO Reyes's verbal commands and was handcuffed, Sgt. Lei did not observe any blood on § 87(2)(b) or in the backyard, nor did he observe any injuries to § 87(2)(b) Sgt. Lei did not speak to § 87(2)(b) nor did § 87(2)(b) say anything during this time. While escorting § 87(2)(b) inside the location § 87(2)(b) § 87(2)(b) went limp and started to drag his feet, so PO Reyes and another officer who were on opposite sides of § 87(2)(b) held § 87(2)(b)'s arms up while Sgt. Lei, who was walking behind them, 'tapped' § 87(2)(b)'s legs up to avoid them hitting the two steps that led into the residence. By tapped, he explained that he used his right hand to lift both of his feet up quickly to avoid hitting the steps, and then once they cleared the steps he let go of his feet. When § 87(2)(b) went limp, Sgt. Lei didn't think anything was physically wrong with him but just that § 87(2)(b) might have been trying to be 'difficult'. § 87(2)(b) was not sweating, and there was nothing unusual about his actions. Sgt. Lei stated no officer picked up § 87(2)(b)'s legs up from the floor and held them while they were escorting him out of the location. Sgt. Lei canvassed the backyards of § 87(2)(b) § 87(2)(b) and § 87(2)(b) for a gun or any other weapon but nothing was recovered. At some point, during the same day, Sgt. Lei was informed by an officer, whom he didn't recall that § 87(2)(b) died § 87(2)(b). Upon watching the second video above, Sgt. Lei identified himself in the video but did not recall § 87(2)(b) being carried out by his arms and legs. Sgt. Lei was not able to articulate why § 87(2)(b) needed to be carried out in that manner. (Board Review 09)

PO Bogle's testimony was consistent with that of PO Reyes's and Sgt. Lei's with the following exceptions: She arrived in the parking lot with her gun drawn and pointed at § 87(2)(b) who was inside the backyard of § 87(2)(b) with one hand on top of the 6-foot wall. After being ordered by Sgt. Lei to holster her weapon, she approached and climbed the 6-foot wall to see what was going on in the backyard. She observed § 87(2)(b) face down on the ground, with PO Reyes close to him. PO Bogle didn't know if § 87(2)(b) was handcuffed at this point. PO Bogle observed a smear of blood on a table that was pushed against the same wall § 87(2)(b) was climbing, but was unable to tell where the blood came from. PO Reyes walked § 87(2)(b) to the rear door of the location and § 87(2)(b) was walking on his own two feet without any struggle.

She never observed any officer carry him by his legs and no officer informed her of such. PO Bogle spoke with a female resident of § 87(2)(b), who informed her that she observed § 87(2)(b) jumping from backyard to backyard climbing on people's sheds and that she observed § 87(2)(b) fall off a shed in a neighboring backyard. PO Bogle was ordered to go to the hospital in regards to § 87(2)(b) and while there, PO Bogle heard hospital staff saying § 87(2)(b) had cocaine in his system. Upon watching the second video above, PO Bogle stated she never saw when the officers walked him out the front of the location. (Board Review 10)

PO Babayev's testimony was consistent with that of PO Bogle's with the following exceptions: when he climbed the 6-foot wall to observe the backyard he never observed any blood in the backyard. PO Babayev didn't speak to any civilians on scene, and waited in his police vehicle until Sgt. Lei came back and instructed him to drive to the 104th Precinct stationhouse. (Board Review 11)

Det. Diaz testified that on July 13, 2018, at approximately 9:30am, he and his partner, PO Calvagna, received a radio run of § 87(2)(b) being in possession of a firearm in the backyard of a daycare located at § 87(2)(b). Arriving at the scene ten minutes later, he exited his vehicle and walked towards the parking lot adjacent to the location. He was told by an officer, who was in the backyard of the location, that they already had § 87(2)(b) in custody and they were bringing him out. Det. Diaz walked back to his vehicle and observed PO Reyes, Sgt. Lei and another officer walking a rear cuffed § 87(2)(b) towards his vehicle. The officers were having a hard time walking § 87(2)(b) to his vehicle because § 87(2)(b) kept dragging his feet and shrugging his arms away from the officers. Det. Diaz observed § 87(2)(b) walking on his own two feet but also observed the officers having to lift his arms up as they were walking him when § 87(2)(b) dragged his feet. He never observed § 87(2)(b) being carried by his legs and arms. The officers weren't saying anything to him and § 87(2)(b) wasn't saying anything to them. § 87(2)(b)'s face was sweaty but breathing was normal. Det. Diaz didn't observe any cuts, bruises, or blood to § 87(2)(b) nor did § 87(2)(b) complain of any pain or injury. Sgt. Lei asked Det. Diaz to transport § 87(2)(b) to the 104th stationhouse, and Det. Diaz assisted § 87(2)(b) into the vehicle with no issue. Det. Diaz informed § 87(2)(b) that they received a phone call about him jumping over fences, and that he ultimately landed in the back of daycare with a firearm. Det. Diaz asked him if he had a gun and § 87(2)(b) responded he had a knife but he threw it over a fence. Det. Diaz then asked him if he was on any drugs and § 87(2)(b) stated 'Mollys', but never informed him how many he took or how long ago he took them. § 87(2)(b) also never informed Det. Diaz why he was in the backyard, or what he was doing that morning. During this conversation § 87(2)(b) was speaking normally, his breathing was fine and had no trouble saying anything. Det. Diaz then left the location.

Halfway through the two-minute transport, § 87(2)(b) stated he wanted to be transported to the hospital because he didn't want to sit in the stationhouse or Central Bookings. While driving, Det. Diaz ordered an ambulance to meet them at the 104th Precinct stationhouse. When § 87(2)(b) requested to go to the hospital, Det. Diaz didn't notice anything different about his physical condition. § 87(2)(b) still looked fine, his breathing was normal and Det. Diaz did not suspect any life-threatening emergency. § 87(2)(b) didn't express any injury, pain, or that he wasn't feeling well. Nothing else was said by either party during the transport. Upon arrival at the 104th Precinct stationhouse, Det. Diaz and his partner walked § 87(2)(b) up the stairs into the

stationhouse with no issue or cause for concern. While walking him to the front desk, § 87(2)(b) became unsteady on his feet, and the officers had to hold him by his arms in order to hold him up. § 87(2)(b) did not express anything verbally. At the front desk, § 87(2)(b) wasn't able to stand on his own, and was dropping his weight and his legs were going limp. Det. Diaz informed the desk officer, Sgt. Reiman, about what was going on and Sgt. Reiman asked § 87(2)(b) if he was on anything and § 87(2)(b) stated, 'Mollys' again. Det. Diaz continued to hold § 87(2)(b) up until an officer went to get him a chair. § 87(2)(b) sat down in the chair and while Det. Diaz was trying to get his name, § 87(2)(b) kept saying "Mollys." Det. Diaz then called for an updated estimated time of arrival on the ambulance. Det. Diaz continued asking § 87(2)(b) for his name, if he knew where he was, or what he was doing, but § 87(2)(b) started to mumble and become unresponsive. Det. Diaz used his fingers to conduct a sternal chest rub but felt nothing, and then put his fingers on his throat underneath his jawbone to feel for a pulse but didn't feel anything. § 87(2)(b)'s head then rolled back and § 87(2)(b) went unconscious. § 87(2)(b) was put on the floor, and Det. Diaz started performing CPR. Det. Diaz didn't notice any bruises on his torso, chest, or face area. An AED machine was utilized to try to get a shock to the heart but the machine read "No shock advised". Det. Diaz did not know why it read "No shock advised", but continued performing CPR. However, there was no response from § 87(2)(b). Approximately two minutes later, FDNY EMS arrived on scene and they performed CPR and used their own AED machine. However, Det. Diaz did not observe § 87(2)(b) respond to EMS's actions, and EMS did not inform them of § 87(2)(b)'s status. After a few minutes, EMS transported § 87(2)(b) to the hospital. A couple days after this incident, Det. Diaz spoke to a commanding officer, whom he didn't recall, and this officer informed him that § 87(2)(b) had died § 87(2)(b) (Board Review 12)

PO Calvagna's testimony was consistent with that of Det. Diaz's, with the following exceptions: During the six-minute transport, § 87(2)(b) expressed he wasn't feeling well, and Det. Diaz asked if he wanted to go to the hospital and § 87(2)(b) replied, "Yes." Det. Diaz immediately went over the radio as he was driving and requested an ambulance to meet them at the 104th Precinct stationhouse. During that verbal exchange, § 87(2)(b) spoke normally to Det. Diaz, was coherent and appeared to be aware of what was happening. While at the front desk of the 104th Precinct stationhouse, PO Calvagna grabbed a chair for § 87(2)(b) since he kept leaning sideways. § 87(2)(b) sat down, and then his neck and head rolled back immediately going unconscious. The officers were in the stationhouse for approximately five minutes before § 87(2)(b) went unconscious and then a minute later EMS arrived on scene and transported § 87(2)(b) to § 87(2)(b). (Board Review 13)

Sgt. Reiman testified that while he was assigned to the 104th Precinct stationhouse's front desk, he heard Det. Diaz go over the radio and request an ambulance to meet them at the 104th Precinct stationhouse for § 87(2)(b). A few minutes later, Sgt. Reiman heard § 87(2)(b) who was being walked by Det. Diaz and PO Calvagna from the stationhouse entrance to the front desk, state, "I can't breathe" in a loud and clear voice a couple times. However, Sgt. Reiman didn't observe § 87(2)(b) to have trouble breathing and further reasoned that since § 87(2)(b) was speaking in a loud and clear tone, § 87(2)(b) had to have sufficient air in his lungs to enunciate. Sgt. Reiman didn't recall observing any injuries or blood to § 87(2)(b) at this point. Sgt. Reiman instructed an officer to go get a chair and bring it to the front desk so § 87(2)(b) could be comfortable and directed Det. Diaz to put a rush on the ambulance. Sgt. Reiman asked § 87(2)(b) if he took anything and

§ 87(2)(b) muttered, “Moll” but then wasn’t able to finish the word. It sounded like § 87(2)(b) was trying to state “Molly”. § 87(2)(b)’s eyes were still open but he became unresponsive, in that, he wasn’t speaking or responding to Sgt. Reiman’s inquiries if he was alright. Sgt. Reiman instructed Det. Diaz to check for a pulse and Det. Diaz complied but did not feel anything. Det. Diaz began to administer CPR, while Sgt. Reiman walked to get the AED defibrillator machine. A few moments later, EMS arrived on scene and continued CPR and administered their own AED machine. § 87(2)(b) was then transported to the hospital, while Sgt. Reiman stayed in the stationhouse making the proper notifications. He was later informed that § 87(2)(b) died but he was never informed of the cause of death. (Board Review 14)

PO Rosario was seated next to Sgt. Reiman and assigned as the telephone switchboard operator on July 13, 2018. Her testimony was consistent with that of Sgt. Reiman’s with the following exceptions: Neither the officers nor § 87(2)(b) were saying anything as they were walking him to the front desk. When they arrived at the front desk, § 87(2)(b) was having trouble standing, in that, he was going limp and leaning to the side so an officer went to get him a chair. The officers asked § 87(2)(b) if he was okay, and whether or not he took something and § 87(2)(b) kept repeating ‘Molly’. § 87(2)(b) began to mumble but PO Rosario was unable to understand. PO Rosario suspected § 87(2)(b) was experiencing trouble breathing because he struggled to speak, and had shortness of breath. However, § 87(2)(b) never stated he was having trouble breathing. As § 87(2)(b) sat in the chair, he kept sliding down and off of it and kept swaying his head back and forth so Det. Diaz had to hold § 87(2)(b) up by his arms in order for him to stay on the chair. When one officer stated § 87(2)(b) was no longer breathing, Det. Diaz began to administer CPR. Det. Diaz instructed PO Rosario to go outside in the front of the stationhouse and wait for the ambulance to come and when they arrived to direct them on where to go. Approximately after five minutes of being outside, EMS arrived and she informed them of where to go. PO Rosario stayed outside and approximately five to ten minutes later, EMS brought § 87(2)(b) out on a stretcher while performing chest compressions on him. They put him in the ambulance and they took him to the hospital. (Board Review 15)

On October 4, 2018, the undersigned received the Police Radio Communications for this incident.

§ 87(2)(g)
At the 18:11 mark of the audio recording, Det. Diaz can be heard requesting an ambulance meet them at the 104th Precinct Stationhouse. At the 22:49 mark of the audio recording, Det. Diaz inquired to the estimated time of arrival of the ambulance and informed the dispatcher to put a rush on the ambulance. At the 26:40 mark of the audio recording, Det. Diaz again requested for a rush on the ambulance and informed the 911 dispatcher that § 87(2)(b) was unconscious. At the 28:45 mark of the audio recording, Sgt. Reiman requested a third rush on the ambulance, informing the dispatcher that they were administering CPR to the unconscious § 87(2)(b) (Board Review 16)

The decision to display or draw a firearm should be based on an articulable belief that the potential for serious physical injury is present. When a uniformed member of the service determines that the potential for serious physical injury is no longer present, the uniformed member of the service will holster the firearm as soon as practicable. *Patrol Guide 221-01* (Board Review 17)

§ 87(2)(g)

It is therefore recommended that **Allegations A, B, C and D be Exonerated.**

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as **Unfounded.**

The first 911 call placed in regards to § 87(2)(b) was at 9:26am. Officers received the call at 9:27am and PO Reyes, the first officer on scene, arrived at 9:29am according to Event § 87(2)(b). By 9:43am, § 87(2)(b) was placed under arrest and in Det. Diaz's vehicle ready to be transported to the 104th Precinct stationhouse. Three minutes later, at 9:46am, after § 87(2)(b)'s first request for medical assistance, Det. Diaz requested for an ambulance to meet them at the 104th Precinct stationhouse for § 87(2)(b) while he was en route to that stationhouse. § 87(2)(g)

§ 87(2)(b) In addition, PO Reyes, Sgt. Lei, Det. Diaz, and PO Calvagna, the main officers who interacted with § 87(2)(b) before he became unconscious, all testified that § 87(2)(b) appeared to be in normal physical condition when they first interacted with him. None of them observed any bruises to his body, and his breathing and eyes appeared normal. PO Reyes testified that § 87(2)(b) responded coherently to his question about having a gun, and Det. Diaz testified that he had an entire intelligible conversation with § 87(2)(b) about why the police were called to the location and how § 87(2)(b) didn't have a gun but a knife. During this conversation, § 87(2)(b) acknowledged he took "Molly's" but never disclosed how many or when, and no officer observed § 87(2)(b) ingest any substances while on scene or observed § 87(2)(b) gesture his hands to his mouth. § 87(2)(b) didn't request medical attention or express he wasn't feeling well, until he was inside of Det. Diaz's vehicle and even then, Det. Diaz and PO Calvagna testified § 87(2)(b) was still coherent and appeared to be aware of what was happening. PO Reyes and Sgt. Lei testified that the only reason § 87(2)(b)'s body was lifted when walking him out of the location was not because of a medical issue but because § 87(2)(b) resisted, in that, he stopped walking on his own and dropped his weight and dragged his feet. There was a need to get § 87(2)(b) out of the location quickly because the nature of the job involved a firearm and the location was a daycare with young children present. It wasn't until § 87(2)(b) was inside the 104th Precinct stationhouse, that Det. Diaz, PO Calvagna, Sgt. Reiman, and

PO Rosario stated § 87(2)(b) appeared to be in declining physical condition. In response to § 87(2)(b)'s declining physical condition, and five minutes after his initial request for an ambulance, Det. Diaz requested a rush on it. Four minutes after that, Det. Diaz requested another rush on the ambulance. Finally, two minutes later, Sgt. Reiman put a third and final rush on the ambulance.

§ 87(2)(g)

It is therefore recommended, that **Allegation F** be closed as **Unfounded**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party. (Board Review 19)
- This is the first CCRB complaint to which § 87(2)(b) has been a party. (Board Review 20)
- PO Reyes has been a member of service for one year and this is the first CCRB complaint to which he has been a subject.
- PO Russi has been a member of service for fifteen years and has been a subject in three CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)
- PO Paulsaint has been a member of service for seven years and has been a subject in three CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g)
- PO Bogle has been a member of service for two years and this is the first CCRB complaint to which she has been a subject.

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- On November 15, 2018, a request was made determine if a Notice of Claim was filed in regards to this incident. Confirmation from the Office of the New York City Comptroller will be added to the case file upon receipt.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date